

1. S-PR-0009374 Sagaria, Scott Joseph - Estate of

Status hearing

Appearance is required for continued status hearing.

Amended 1st / 2d practice administrator accounts

Appearance is required for continued hearing on 1st / 2d practice administrator accounts.

Amended petition objecting to accounts, to surcharge practice administrator, and re breach

Appearance is required for continued hearing on amended petition objecting to accounts, to surcharge practice administrator, and re breach.

2. S-PR-0010165 Kelsey, Anna Fey- In re the Estate of

Appearance is required for hearing on second final distribution petition.

Personal representative response is needed: personal representative's original petition for final distribution did not request authorization to withhold a \$50,000 reserve for any purpose, much less for to address "possible taxes from the sale of decedent's residence and possible questions on determination of heirs." 2d Final Distribution Petition, ¶ 5. The only authorized reserve was \$2,500, and the sole heir of decedent was fixed and determined to be James Bartlett. Final Distribution Order, filed May 26, 2023, ¶¶ 9–11. The original final distribution petition reported that decedent's residence was sold in June 2021, consistent with the court's June 2021 order confirming sale. 1st Final Distribution Petition, account schedule F; Order Confirming Sale filed June 1, 2021. Personal representative does not sufficiently explain why the large unauthorized reserve was retained for nearly 4 years after sale of the property and nearly 2 years after the order to distribute the estate. Points and authorities are needed showing the legal basis for personal representative's actions in light of the court's order to distribute and Prob.C. § 11641.

3. S-PR-0010328 Clement, James Wesley ; In re the Estate of

Appearance is required for hearing on petition for final distribution and to waive 2d / final account.

Missing sufficient notice of hearing. The clerk erroneously indicated to petitioner that his matter would be heard Monday, May 18, and correct the hearing date by notice

provided to petitioner's attorney April 28. Missing notice of hearing for the corrected May 15 hearing date. Missing service of notice of hearing.

Court determination is needed as to the following issues concerning the request for extraordinary fees:

In proceedings in 2023, the court awarded \$15,000 in extraordinary fees. It is unclear from the court hearing minutes and the order after hearing whether the \$15,000 was intended to resolve the extraordinary fees request through 2023, or was merely an advance on all extraordinary fees which the court would only finally determine later. Court determination as to the character of the \$15,000 fees awarded is needed.

In proceedings in 2023, the court made a tentative determination that attorney and staff rates requested by personal representative's counsel for extraordinary attorney fees exceeded reasonable rates. This tentative determination was not included in the order after hearing, for reasons not revealed in the order or in the court's hearing minutes. Petitioner's revised extraordinary fees requests adjusted rates for all billing attorneys and staff in line with the court's tentative determination except for David Kelly Esq and paralegal Sherri Handley. As to Kelly, petitioner requests \$495/hr from April 2020; the court's tentative determination was that fees through January 2023 should be limited to \$425/hr. As to Handley, petitioner requests \$225/hr from April 2020; the court's tentative determination was that fees through January 2023 should be limited to \$200/hr. Court determination is needed as to reasonableness (or lack thereof) of fees at the higher rates now requested.

Petitioner's request for extraordinary fees includes substantial billings for inappropriate work related to the guardian ad litem appointment for beneficiary Benjamin Clement, who reached the age of majority in June 2022. Counsel billed approximately \$6,000 for services to relieve GAL of her appointment after June 2022 which resulted in a petition to terminate *probate guardianship of the estate*, including requests to waive the filing of an inventory and appraisal and a final account. No guardianship of the estate was ever established. As noted in 2023, Probate Code provisions for guardian of the estate such as the requirement to file an inventory and appraisal and accounts have no application to a GAL. The GAL, by her appointment, had no authority to marshal or manage any assets for minor in any event. A review of pages 12–14 of counsel's revised billing statements shows up to \$6,688.00 in line-item entries involving unnecessary work to vacate the GAL appointment. It is recommended the extraordinary fees request be reduced by \$6,000. Court determination is needed.

Finally, it is requested the court determine that GAL-related fees which are allowed be charged against the estate generally, as prayed, rather than solely against the distributive share for Benjamin Clement.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.